

Development Consent

Section 4.38 of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the Development Application referred to in Schedule 1, subject to the conditions specified in Schedule 2.

These conditions are required to:

- prevent, minimise, or offset adverse environmental impacts;
- set standards and performance measures for acceptable environmental performance;
- require regular monitoring and reporting; and
- provide for the ongoing environmental management of the development


Joanna Bakopanos
A/Director
Industry Assessments

Sydney

11 March 2026

File: EF23/14121

SCHEDULE 1

Application Number:	SSD-63235720
Applicant:	Stockland Development Pty Limited
Consent Authority:	Minister for Planning and Public Spaces
Site:	1-5 Khartoum Road, Macquarie Park Part Lot 2 DP 1043041
Development:	Demolition of existing buildings, bulk earthworks and construction and operation of a data centre with a maximum power consumption of 76.4 megawatts, comprising emergency back-up generators, cooling plant, diesel and lithium-ion battery storage, associated infrastructure and landscaping

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DEFINITIONS

Additional Information	Correspondence by the Applicant in response to the Department's request for information, including the document(s) titled: a) 'Response to City of Ryde's Request for Further Information_SSDA 63235720', prepared by Urbis Ltd, dated 4 July 2025 b) 'Response to Request for Further Information_SSDA 63235720', prepared by Urbis Ltd, dated 29 August 2025 c) 'Response to RFI – 1-5 Khartoum Rd, Talavera Rd Data Centre SSD-63235720', prepared by Urbis Ltd, dated 20 October 2025
Applicant	Stockland Development Pty Limited, or any person carrying out any development to which this consent applies
BCA	Building Code of Australia
Carrier	Operator of a telecommunication network and/or associated infrastructure, as defined in section 7 of the <i>Telecommunications Act 1997</i> (Cth)
CEMP	Construction Environmental Management Plan
Certifier	A council or an accredited certifier (including principal certifiers) authorised under section 6.5 of the EP&A Act to issue Part 6 certificates
Conditions of this consent	Conditions contained in Schedule 2 of this document
Construction	The carrying out of works for the purpose of the development, including bulk earthworks, and erection of buildings and other infrastructure permitted by this consent
Council	City of Ryde
Day	The period from 7 am to 6 pm on Monday to Saturday, and 8 am to 6 pm on Sundays and Public Holidays
Department	NSW Department of Planning, Housing and Infrastructure (DPHI)
Development	The development described in Schedule 1, the EIS and Submissions Report, including the works and activities comprising the construction and operation of a data centre, as modified by the conditions of this consent
Development layout	The plans at Appendix 1 of this consent
Earthworks	Bulk earthworks, site levelling, import and compaction of fill material, excavation for installation of drainage and services, to prepare the site for the main construction works
EIS	The Environmental Impact Statement titled <i>MPark Talavera Road Data Centre Environmental Impact Statement SSD-63235720 1-5 Khartoum Road, Macquarie Park</i> , prepared by Urbis Ltd and dated 17 February 2025, submitted with the application for consent for the development
ENM	Excavated Natural Material
Environment	As defined in section 1.4 of the EP&A Act
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	Environmental Planning and Assessment Regulation 2021
EPA	NSW Environment Protection Authority
Evening	The period from 6 pm to 10 pm
Fibre-ready facility	As defined in section 372W of the <i>Telecommunications Act 1997</i> (Cth)
FRNSW	Fire and Rescue NSW
FSS	Fire Safety Study
Heritage	Encompasses both Aboriginal and historic heritage including sites that predate European settlement, and a shared history since European settlement
Heritage item	An item as defined under the <i>Heritage Act 1977</i> , and assessed as being of local, State and/ or National heritage significance, and/or an Aboriginal Object or Aboriginal Place as defined under the <i>National Parks and Wildlife Act 1974</i> , the World Heritage List, or the National Heritage List or Commonwealth Heritage List under the

Environment Protection and Biodiversity Conservation Act 1999 (Cth), or anything identified as a heritage item under the conditions of this consent

HPC	Housing and Productivity Contribution
HPC Order	Environmental Planning and Assessment (Housing and Productivity Contributions) Order 2024
ICNG	<i>Interim Construction Noise Guideline</i> (DECC, 2009)
Incident	An occurrence or set of circumstances that causes or threatens to cause material harm to the environment, and as a consequence of that environmental harm, may cause harm to the health and safety of human beings, and which may or may not be or cause a non-compliance Note: “Material harm” is defined in this consent
Land	Has the same meaning as the definition of the term in section 1.4 of the EP&A Act
Load curtailment	Means the use of the back-up generator system to reduce the development’s use of electricity from the National Electricity Market, and does not include instances where load shedding is initiated by the Australian Energy Market Operator in accordance with the National Electricity Rules
Material harm	Is harm that: a) involves actual harm to the environment that may include (but not be limited to) a leak, spill, emission other escape or deposit of a substance, and as a consequence of that environmental harm (pollution), may cause harm to the health or safety of people; or b) results in actual loss or property damage of an amount, or amounts in aggregate, exceeding \$10,000 (such loss includes the reasonable costs and expenses that would be incurred in taking all reasonable and practicable measures to prevent, mitigate or make good harm to the environment) Note: This definition excludes “harm” that is either authorised under this consent or any other statutory approval Note: For the purposes of this definition, material harm excludes incidents captured by Work Health and Safety reporting requirements
Minister	NSW Minister for Planning and Public Spaces (or delegate)
Mitigation	Activities associated with reducing the impacts of the development prior to or during those impacts occurring
Night	The period from 10 pm to 7 am on Monday to Saturday, and 10 pm to 8 am on Sundays and Public Holidays
Non-compliance	An occurrence, set of circumstances or development that is a breach of this consent
NPfl	<i>Noise Policy for Industry</i> (EPA, 2017)
OEMP	Operational Environmental Management Plan
Operation	The use of the site as a data centre, as described in the EIS, Amendment Report and Submissions Report
Planning Secretary	Secretary of the Department, or delegate
POEO Act	<i>Protection of the Environment Operations Act 1997</i>
Power outage event	A sustained interruption to the site’s connection to the National Electricity Market, which lasts for a period of more than 15 minutes
Principal Certifier	The certifier appointed as the principal certifier for the building work under section 6.6(1) of the EP&A Act
Reasonable	Means applying judgement in arriving at a decision, taking into account: mitigation benefits, costs of mitigation versus benefits provided, community views, and the nature and extent of potential improvements
Registered Aboriginal Parties	Means the Aboriginal persons identified in accordance with the document entitled “ <i>Aboriginal cultural heritage consultation requirements for proponents 2010</i> ” (DECCW)
Rehabilitation	The restoration of land disturbed by the development to a good condition, to ensure it is safe, stable and non-polluting

Sensitive receivers	A location where people are likely to work, occupy or reside, including a dwelling, school, hospital, office or public recreational area
Site	The land defined in Schedule 1
Site Auditor	As defined in section 4 of the <i>Contaminated Land Management Act 1997</i>
Site Audit Report	As defined in section 4 of the <i>Contaminated Land Management Act 1997</i>
Site Audit Statement	As defined in section 4 of the <i>Contaminated Land Management Act 1997</i>
Submissions Report	The Applicant's response to issues raised in submissions received in relation to the application for consent for the development under the EP&A Act and includes the document titled <i>Response to Submissions – SSD-63235720 1-5 Khartoum Road, Macquarie Park</i> , prepared by Urbis Ltd and dated 8 May 2025
TfNSW	Transport for New South Wales
VENM	Virgin Excavated Natural Material
Waste	Has the same meaning as the definition of the term in the Dictionary to the POEO Act
Year	A period of 12 consecutive months

SCHEDULE 2

PART A ADMINISTRATIVE CONDITIONS

OBLIGATION TO MINIMISE HARM TO THE ENVIRONMENT

- A1. In addition to meeting the specific performance measures and criteria in this consent, all reasonable and feasible measures must be implemented to prevent, and if prevention is not reasonable and feasible, minimise any material harm to the environment that may result from the construction and operation of the development, and any rehabilitation required under this consent.

TERMS OF CONSENT

- A2. The development may only be carried out:
- (a) in compliance with the conditions of this consent;
 - (b) in accordance with all written directions of the Planning Secretary;
 - (c) in accordance with the EIS and Submissions Report;
 - (d) in accordance with the Development Layout in Appendix 1 of this consent; and
 - (e) in accordance with the management and mitigation measures in Appendix 2 of this consent.
- A3. Consistent with the requirements in this consent, the Planning Secretary may make written directions to the Applicant in relation to:
- (a) the content of any strategy, study, system, plan, program, review, audit, notification, report or correspondence submitted under or otherwise made in relation to this consent, including those that are required to be, and have been, approved by the Planning Secretary; and
 - (b) the implementation of any actions or measures contained in any such document referred to in condition A3(a).
- A4. The conditions of this consent and directions of the Planning Secretary prevail to the extent of any inconsistency, ambiguity or conflict between them and a document listed in condition A2(c) or A2(e). In the event of an inconsistency, ambiguity or conflict between any of the documents listed in condition A2(c) or A2(e), the most recent document prevails to the extent of the inconsistency, ambiguity or conflict.

LIMITS OF CONSENT

Lapsing

- A5. This consent lapses five years after the date from which it operates, unless the development has physically commenced on the land to which the consent applies before that date.

Back-up Generator System

- A6. The Applicant must ensure the back-up generators installed and operated under this consent do not exceed a total installed generating capacity of 84 megawatts.
- A7. The Applicant must ensure:
- (a) operation of the back-up generators (including testing) does not exceed 200 hours per year;
 - (b) no more than one (1) generator is tested at any one time; and
 - (c) the diesel fuel storage capacity at the site does not exceed 2,000 tonnes at any one time.

Note: For the purposes of condition A7, calculation of how many hours the back-up generators are tested, as a collective, should be based on the hours (in real time) that testing is in fact undertaken at the site per year. For example, five generators being tested concurrently over the course of an hour would count as one hour towards the threshold stipulated by condition A7 rather than five hours.

- A8. This development consent does not permit the use of the back-up generators:
- (a) for the purpose of generating electricity to be distributed by the National Electricity Market; or
 - (b) to support load curtailment at the site.

NOTIFICATION OF COMMENCEMENT

- A9. The date of commencement of each of the following phases of the development must be notified to the Planning Secretary in writing, at least one month before that date, or as otherwise agreed to by the Planning Secretary:
- (a) construction;
 - (b) operation;
 - (c) full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating); and

- (d) cessation of operations.

A10. If the construction or operation of the development is to be staged, the Planning Secretary must be notified in writing, at least one month before the commencement of each stage (or other timeframe agreed with the Planning Secretary).

EVIDENCE OF CONSULTATION

A11. Where conditions of this consent require consultation with an identified party, the Applicant must:

- (a) consult with the relevant party prior to submitting the subject document to the Planning Secretary for approval; and
- (b) provide details of the consultation undertaken including:
 - (i) the outcome of that consultation, matters resolved and unresolved; and
 - (ii) details of any disagreement remaining between the party consulted and the Applicant and how the Applicant has addressed the matters not resolved.

STAGING, COMBINING AND UPDATING STRATEGIES, PLANS OR PROGRAMS

A12. With the approval of the Planning Secretary, the Applicant may:

- (a) prepare and submit any strategy, plan or program required by this consent on a staged basis (if a clear description is provided as to the specific stage and scope of the development to which the strategy, plan or program applies, the relationship of the stage to any future stages and the trigger for updating the strategy, plan or program);
- (b) combine any strategy, plan or program required by this consent (if a clear relationship is demonstrated between the strategies, plans or programs that are proposed to be combined); and
- (c) update any strategy, plan or program required by this consent (to ensure the strategies, plans and programs required under this consent are updated on a regular basis and incorporate additional measures or amendments to improve the environmental performance of the development).

A13. If the Planning Secretary agrees, a strategy, plan or program may be staged or updated without consultation being undertaken with all parties required to be consulted in the relevant condition in this consent.

A14. If approved by the Planning Secretary, updated strategies, plans or programs supersede the previous versions of them and must be implemented in accordance with the condition that requires the strategy, plan or program.

UTILITIES, SERVICES AND PUBLIC INFRASTRUCTURE

General Requirements

A15. Prior to the commencement of construction of the development, the Applicant must:

- (a) consult with the relevant owner and provider of services or public infrastructure that are likely to be affected by the development or that need to be installed to support the development, to make satisfactory arrangements for relevant approvals, access to, diversion, protection and support of the affected services or infrastructure;
- (b) prepare a dilapidation report identifying the condition of all public infrastructure in the vicinity of the site (including roads, gutters and footpaths); and
- (c) submit a copy of the dilapidation report to the Planning Secretary and Council.

A16. Unless the Applicant and the applicable authority agree otherwise, the Applicant must:

- (a) repair, or pay the full costs associated with repairing, any public infrastructure that is damaged by carrying out the development;
- (b) relocate, or pay the full costs associated with relocating, any public infrastructure that needs to be relocated as a result of the development; and
- (c) obtain any relevant approval(s) from the relevant service provider(s), prior to undertaking construction of the corresponding utility works.

Sydney Water

A17. Prior to the commencement of operation of the development, the Applicant must obtain a Compliance Certificate for water and sewerage infrastructure servicing of the site under section 73 of the *Sydney Water Act 1994*.

Fibre-Ready Facilities

A18. Prior to the issue of a Construction Certificate for any stage of the development, the Applicant (whether or not a constitutional corporation) is to provide evidence, satisfactory to the Certifier, that arrangements have been made for:

- (a) the installation of fibre-ready facilities to all individual lots and/or premises in the development to enable fibre to be readily connected to any premises that is being or may be constructed on those lots; and

- (b) the provision of fixed-line telecommunications infrastructure in the fibre-ready facilities to all individual lots and/or premises in the development demonstrated through an agreement with a carrier.

A19. Prior to the issue of the relevant Occupation Certificate for the development the Applicant must demonstrate that the carrier has confirmed in writing it is satisfied that the fibre-ready facilities are fit-for-purpose.

DEMOLITION

A20. All demolition must be carried out in accordance with *Australian Standard AS 2601-2001 The Demolition of Structures* (Standards Australia, 2001).

STRUCTURAL ADEQUACY

A21. All new buildings and structures, and any alterations or additions to existing buildings and structures, that are part of the development, must be constructed in accordance with the relevant requirements of the BCA.

Note:

- Under Part 6 of the EP&A Act, the Applicant is required to obtain construction and occupation certificates for the proposed building works.
- The Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021 sets out the requirements for the certification of the development.

EXTERNAL WALLS AND CLADDING

A22. The external walls of all buildings including additions to existing buildings must comply with the relevant requirements of the BCA.

A23. Prior to the issue of:

- the relevant Construction Certificate relating to the construction of external walls (including the installation of finishes and claddings such as synthetic or aluminium composite panels); and
- the relevant Occupation Certificate,

the Applicant must provide the Certifier with documented evidence that the products and systems proposed for use or used in the construction of external walls (including finishes and claddings such as synthetic or aluminium composite panels) comply with the requirements of the BCA.

A24. The Applicant must provide a copy of the documentation given to the Certifier (see condition A23) to the Planning Secretary within seven days after the Certifier accepts it.

COMPLIANCE

A25. The Applicant must ensure that all of its employees, contractors (and their sub-contractors) are made aware of, and are instructed to comply with, the conditions of this consent relevant to activities they carry out in respect of the development.

CONTRIBUTIONS TO COUNCIL

A26. Prior to the issue of a Construction Certificate for any part of the development, a total contribution amount of **\$776,297.24** in relation to the public amenities and services set out in the following table must be paid to Council.

Table 1 Section 7.11 Development Contribution Amount

Community & Cultural Facilities	\$172,430.04
Open space & Recreation Facilities	\$389,879.36
Roads & Traffic Management Facilities	\$202,445.66
Plan Administration	\$11,542.18
Total contribution amount	\$776,297.24

The contribution is imposed under section 7.11 of the EP&A Act and has been determined, at the date of this consent, in accordance with or having regard to the *City of Ryde Section 7.11 Development Contributions Plan 2020*. The total contribution amount specified above must be adjusted between the date of this consent and the date of payment in accordance with the plan.

HOUSING AND PRODUCTIVITY CONTRIBUTION

A27. Prior to the issue of a Construction Certificate for any part of the development, a housing and productivity contribution (HPC) in accordance with Table 2 must be paid for the development, as adjusted in accordance with condition A28.

Table 2 Housing and Productivity Contribution Amount

Housing and productivity contribution	Amount
Housing and productivity contribution (base component)	\$315,192.70
Transport project component	N/A

Total housing and productivity contribution	\$315,192.70
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- A28. At the time of payment, the amount of the HPC is to be adjusted in accordance with the Environmental Planning and Assessment (Housing and Productivity Contributions) Order 2024 (HPC Order).

The HPC may be made wholly or partly as a non-monetary contribution (apart from any transport project component) if the Minister administering the EP&A Act agrees.

The HPC is not required to be made to the extent that a planning agreement excludes the application of Subdivision 4 of Division 7.1 of the EP&A Act to the development, or the HPC Order exempts the development from the contribution.

PLANNING AGREEMENT

- A29. Within six months after the date of commencement of construction of the development, or other timeframe agreed by the Planning Secretary, the Applicant must enter into a PA with the Council in accordance with:
- (a) Division 7.1 of Part 7 of the EP&A Act; and
 - (b) the terms of the offer dated 24 November 2024 and the exhibited draft planning agreement.

OPERATION OF PLANT AND EQUIPMENT

- A30. Without limiting the obligations under section 124 of the POEO Act, the Applicant must ensure all plant and equipment used on site, or to monitor the performance of the development, is:
- (a) maintained in a proper and efficient condition; and
 - (b) operated in a proper and efficient manner.

WORK AS EXECUTED PLANS

- A31. Prior to the issue of the relevant Occupation Certificate, the Principal Certifier must be provided with work-as-executed drawings demonstrating that the following works have been constructed as approved:
- (a) the development's stormwater management system (see condition B33); and
 - (b) finished ground levels.

The works-as-executed drawings must be signed by a registered surveyor.

APPLICABILITY OF GUIDELINES

- A32. References in the conditions of this consent to any guideline, protocol, Australian Standard or policy are to such guidelines, protocols, Standards or policies in the form they are in as at the date of this consent.
- A33. However, consistent with the conditions of this consent and without altering any limits or criteria in this consent, the Planning Secretary may, when issuing directions under this consent in respect of ongoing monitoring and management obligations, require compliance with an updated or revised version of such a guideline, protocol, Standard or policy, or a replacement of them.

ADVISORY NOTES

- AN1. All licences, permits, approvals and consents as required by law must be obtained and maintained as required for the development. No condition of this consent removes any obligation to obtain, renew or comply with such licences, permits, approvals and consents.

PART B SPECIFIC ENVIRONMENTAL CONDITIONS

NOISE AND VIBRATION

Hours of Work

B1. The Applicant must comply with the hours detailed in Table 3 below.

Table 3 Hours of Work

Activity		Day	Time
Construction		Monday – Friday	7 am to 6 pm
		Saturday	8 am to 1 pm
Operation	Use of back-up generators (excluding power outage events)	Monday – Friday	7 am to 6 pm
	All other activities	Monday – Sunday	24 hours

B2. Construction works outside of the hours identified in condition B1 may be undertaken in the following circumstances:

- (a) works that are inaudible at the nearest sensitive receivers;
- (b) works agreed to in writing by the Planning Secretary;
- (c) for the delivery of materials required outside these hours by the NSW Police Force or other authorities for safety reasons; or
- (d) where it is required in an emergency to avoid the loss of lives, property or to prevent environmental harm.

Construction Noise Limits

B3. The development must be constructed to achieve, as far as feasible and reasonable, the construction noise management levels detailed in the ICNG. All feasible and reasonable noise mitigation measures must be implemented and any activities that could exceed the construction noise management levels must be identified and managed in accordance with the management and mitigation measures in Appendix 2 of this consent and the development's CNVMP (see condition B5).

Vibration Criteria

B4. Vibration caused by construction at any structure outside the site must be limited to:

- (a) for structural damage, the latest version of *DIN 4150-3 (2016-12) Vibration in Buildings – Part 3: Effects on Structures* (German Institute for Standardisation, 2016) and *BS 7385-2 Evaluation and measurement for vibration in buildings Guide to damage levels from groundborne vibration* (British Standards Institution, 1993); and
- (b) for human exposure, the acceptable vibration values set out in the *Environmental Noise Management Assessing Vibration: a technical guideline* (DEC, 2006) (as may be updated or replaced from time to time).

Construction Noise and Vibration Management Plan

B5. The Applicant must prepare a Construction Noise and Vibration Management Plan (CNVMP) for the development to the satisfaction of the Planning Secretary. The CNVMP must form part of a CEMP in accordance with condition C2 and must:

- (a) be prepared by a suitably qualified and experienced noise expert;
- (b) describe the procedures to:
 - (i) refine the construction methodology and work schedule to minimise construction noise and vibration impacts;
 - (ii) achieve the noise management levels specified in condition B3;
 - (iii) achieve the vibration criteria specified in condition B4;
- (c) include:
 - (i) management and mitigation measures, including any described in Appendix 2 of this consent;
 - (ii) a description of measures to be implemented to manage high noise or vibration generating works such as piling, rock breaking and vibratory compaction, in close proximity to sensitive receivers;
 - (iii) strategies that have been developed in consultation with the directly adjoining properties for managing noise and vibration impacts, such as any alternative construction methods with lower source intensity levels and provision for respite periods;

- (iv) a description of the community consultation undertaken to develop the strategies in (c)(ii) and (c)(iii) above; and
- (v) a complaints management system to be implemented for the duration of construction.

B6. The Applicant must:

- (a) not commence construction until the CNVMP required by condition B5 is approved by the Planning Secretary; and
- (b) implement the most recent version of the CNVMP approved by the Planning Secretary for the duration of construction.

Operational Noise Limits

B7. The Applicant must ensure that noise generated by the operation of the development does not exceed the noise limits outlined in Table 4 below during the meteorological conditions identified in Table 5, except where altered by condition B8 of this consent. Noise generated by the development is to be measured in accordance with the relevant monitoring performance procedures (section 7) and exemptions (including certain meteorological conditions) of the NPfl.

Table 4 Noise Limits (dB(A))

Location	When back-up generators are in use (incl. testing)	At all other times		
		Day LAeq(15 minute)	Evening LAeq(15 minute)	Night LAeq(15 minute)
Any residence at 25-27 Fontenoy Road, Macquarie Park	32	31	31	30
Any residence at 35 Waterloo Road, Macquarie Park	39	38	38	32
COM1	48	45	45	45
COM3 (Ground Floor Level)	63	63		

Table 5 Applicable Meteorological Conditions

Assessment Period	Meteorological Conditions
Day	Stability Categories A, B, C and D with wind speeds up to and including 3m/s at 10m above ground level.
Evening	Stability Categories A, B, C and D with wind speeds up to and including 3m/s at 10m above ground level.
Night	Stability Categories A, B, C and D with wind speeds up to and including 3m/s at 10m above ground level; or Stability category E and F with wind speeds up to and including 2m/s at 10m above ground level.

B8. The development's noise limits (see condition B7) are altered in the following instances:

- (a) during power outage events, the noise limits outlined in Table 4 do not apply; and
- (b) should the site be subject to meteorological conditions which are not identified in Table 4, then the applicable noise limits for the development are those outlined in Table 4 plus 5dB.

Operational Noise Verification Report

B9. Within three months of the commencement of full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating), or as otherwise directed by the Planning Secretary, the Applicant must prepare and submit a noise verification report for the development. The noise verification report must:

- (a) be prepared to the satisfaction of the Planning Secretary by a suitably qualified and experienced acoustic consultant;
- (b) demonstrate that noise verification has been carried out in accordance with:
 - (i) *AS 1055:2018 Acoustics – Description and measurement of environmental noise* (Standards Australia, 2018); and
 - (ii) *Approved Methods for the Measurement and Analysis of Environmental Noise in NSW* (EPA, 2022);
 - (iii) the monitoring and reporting requirements detailed in Section 7 of the NPfI;
- (c) include:
 - (i) noise measurements taken during general operation and during back-up generator testing;
 - (ii) a record of the development's operating conditions during monitoring, including the number and load of cooling units, fans, and other major noise-emitting plant in operation;
 - (iii) an analysis of:
 - i. the prevailing meteorological conditions;
 - ii. applicable corrections for annoying noise characteristics (as per Fact Sheet C of the NPfI);
 - iii. the correlation between noise levels recorded by the real-time monitoring devices (condition B9) and noise levels measured at compliance locations, including any conversion factors, propagation adjustments, or modelling assumptions used to relate intermediate monitoring data to compliance locations;
 - iv. adjustments to measured noise levels to represent maximum cooling capacity;
 - v. the development's compliance with noise limits specified in condition Table 3; and
 - (iv) a description of additional at-source and transmission pathway mitigation measures implemented, and/or a description of contingency measures to be implemented (including a timetable for the implementation of any required actions), to address any exceedance of the noise limits specified in condition Table 3.

AIR QUALITY

Dust Minimisation

- B10. The Applicant must take all reasonable steps to minimise dust generated during all works authorised by this consent.
- B11. During construction, the Applicant must ensure that:
- (a) exposed surfaces and stockpiles are suppressed by regular watering or other alternative suppression method;
 - (b) all trucks entering or leaving the site with loads have their loads covered;
 - (c) trucks associated with the development do not track dirt onto the public road network; and
 - (d) land stabilisation works are carried out progressively on site to minimise exposed surfaces.

Air Quality Discharges

- B12. The Applicant must install and operate equipment in line with best practice to ensure that the development complies with all load limits, air quality criteria/air emission limits and air quality monitoring requirements as specified in the Protection of the Environment Operations (Clean Air) Regulation 2022.

Annual Emissions Testing

- B13. Within twelve (12) months of the commencement of operation, and every twelve (12) months thereafter, unless the Planning Secretary directs otherwise, the Applicant must undertake an annual emissions test on at least one (1) back-up generator for the pollutants and parameters identified in Table 6 below. The back-up generator must be selected on a rotational basis.

Table 6 Annual Emissions Testing Requirements

Pollutant / Parameter	Units of measure	Frequency	Sampling Method ¹
Nitrogen dioxide or nitric oxide (as NO ₂ equivalent)	Milligrams per cubic metre	Annual	TM-11
Temperature	Degrees Celsius (°C)	Annual	TM-2
Velocity	Metres per second	Annual	TM-2
Oxygen	Percent (%)	Annual	TM-25
Flowrate	Cubic metres per second	Annual	TM-2

Note:

- ¹ The sampling methods are those contained in the *Approved Methods for the Sampling and analysis of Air Pollutants in NSW* (EPA, 2022).

Back-up Generator System

B14. The Applicant must ensure the design, installation and operation of the back-up generators and/or the associated enclosures do not preclude the ability for additional air pollution emission controls to be retrofitted.

Air Quality Management Plan

B15. Prior to the commencement of operation of the development, the Applicant must prepare an Air Quality Management Plan (AQMP) to the satisfaction of the Planning Secretary. The AQMP must form part of the OEMP required by condition C5 and must:

- be prepared by a suitably qualified and experienced person(s);
- detail and rank all emissions from all sources of the development, including particulate emissions;
- describe a program that is capable of evaluating the performance of the operation against the criteria in the *Approved Methods for Modelling and Assessment of Air Pollutants in NSW* (EPA, 2022), including during a power outage event, and determining compliance with key performance indicators;
- identify any control measures that will be implemented for each emission source;
- include a Power Outage Notification Protocol for the development that must:
 - identify the neighbouring properties which would be notified should a power outage event last 30 minutes or more;
 - identify the trigger point(s) for notifying neighbouring properties that the back-up generator system is operating; and
 - detail how these properties would be made aware that the development's back-up generator system is required to operate for the duration of the power outage event.

B16. The Applicant must:

- not commence operation until the AQMP required by condition B15 is approved by the Planning Secretary; and
- implement the most recent version of the AQMP approved by the Planning Secretary for the duration of the development.

Odour Management

B17. The Applicant must ensure the development does not cause or permit the emission of any offensive odour (as defined in the POEO Act).

GREENHOUSE GAS EMISSIONS

B18. Prior to the commencement of operation, the Applicant must prepare and implement a Greenhouse Gas Mitigation Plan (GHGMP) for the life of the development, to the satisfaction of the Planning Secretary. The Plan must form part of the OEMP required by condition C5 and must:

- include a program for reporting on the annual CO₂-e tonnes emissions from the operation of the development (including scope 1 and 2 emissions);
- include mitigation measures to manage and reduce the Greenhouse Gas Emissions of the development;
- include a program to periodically review the operations of the development to identify and implement improvements to energy consumption and energy efficiencies (power usage effectiveness (PUE)); and
- review and, if necessary, revise the mitigation measures included in this plan every three years.

B19. The Applicant must:

- not commence operation until the GHGMP required by condition B18 is approved by the Planning Secretary; and
- implement the most recent version of the GHGMP approved by the Planning Secretary for the duration of the development.

TRAFFIC AND ACCESS

Construction Traffic Management Plan

B20. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Traffic Management Plan (CTMP) for the development to the satisfaction of the Planning Secretary. The plan must form part of the CEMP required by condition C2 and must:

- be prepared by a suitably qualified and experienced person(s);
- be prepared in consultation with Council;

- (c) detail the measures that are to be implemented to ensure road safety and network efficiency during construction;
- (d) include detail of:
 - (i) detail heavy vehicle routes, access and parking arrangements;
 - (ii) strategies that would be implemented to minimise the number of construction workers who will drive to the site;
 - (iii) any potential overflow construction worker parking area(s) to be utilised;
- (e) provide details of any oversized vehicles required for construction;
- (f) provide details of traffic control measures (such as an escort or other suitable traffic control measure) to manage the movement of oversized vehicles along public roads;
- (g) include a Driver Code of Conduct to:
 - (i) minimise the impacts of earthworks and construction on the local and regional road network;
 - (ii) minimise conflicts with other road users;
 - (iii) minimise road traffic noise; and
 - (iv) ensure truck drivers use specified routes;
- (h) include a program to monitor the effectiveness of these measures; and
- (i) if necessary, detail procedures for notifying residents and the community (including local schools), of any potential disruptions to routes.

B21. The Applicant must:

- (a) not commence construction until the CTMP required by condition B20 is approved by the Planning Secretary; and
- (b) implement the most recent version of the CTMP approved by the Planning Secretary for the duration of construction.

Roadworks and Access

B22. The Applicant must submit design plans to the satisfaction of the relevant roads authority which demonstrate that the proposed accesses to the development are designed to accommodate the turning path of a 8.8 m medium rigid vehicle.

Parking

B23. The Applicant must provide sufficient parking facilities on-site, including for heavy vehicles and for site personnel, to ensure that traffic associated with the operation of the development does not utilise (for parking purposes) public roads or public parking facilities in the vicinity of the site.

Operating Conditions

B24. The Applicant must ensure:

- (a) internal roads, driveways and parking (including grades, turn paths, sight distance requirements, aisle widths, aisle lengths and parking bay dimensions) associated with the development are constructed and maintained in accordance with the latest version of *AS 2890.1:2004 Parking facilities Off-street car parking* (Standards Australia, 2004), *AS 2890.2:2018 Parking facilities Off-street Commercial Vehicle Facilities* (Standards Australia, 2018) and *AS 2890.6.2009 Parking facilities Off-street parking for people with disabilities* (Standards Australia, 2009);
- (b) the swept path of the longest vehicle entering and exiting the site, as well as manoeuvrability through the site, is in accordance with the relevant AUSTROADS guidelines;
- (c) the development does not result in any vehicles queuing on the public road network;
- (d) heavy vehicles, equipment and bins associated with the development are not parked and/or stored on public roads or footpaths in the vicinity of the site;
- (e) all vehicles are to be located off and clear of the adjacent roadway before being required to stop;
- (f) all loading and unloading of materials is carried out on-site; and
- (g) all on-site turning areas are kept clear of any obstacles, including parked vehicles, at all times.

Work Place Travel Plan

B25. Prior to the commencement of operation, the Applicant must prepare a Work Place Travel Plan to encourage the use of sustainable and active transport options by operational staff. The Work Place Travel Plan must form part of the OEMP required by condition C5 and must:

- (a) be submitted to the Planning Secretary;

- (b) outline facilities and measures to promote public transport usage, such as car share schemes and employee incentives; and
- (c) describe pedestrian and bicycle linkages and end of trip facilities available on-site.

B26. The Applicant must:

- (a) not commence operation until the Work Place Travel Plan required by condition B25 is submitted to the Planning Secretary; and
- (b) implement the most recent version of the Work Place Travel Plan submitted to the Planning Secretary for the duration of the development.

SOILS, WATER QUALITY AND HYDROLOGY

Imported Soil

B27. The Applicant must:

- (a) ensure that only VENM, ENM, or other material approved in writing by EPA is brought onto the site for use as fill;
- (b) keep accurate records of the volume and type of fill to be used; and
- (c) make these records available to the Planning Secretary upon request.

Erosion and Sediment Control

B28. Prior to the commencement of any construction, the Applicant must install suitable erosion and sediment control measures on-site, in accordance with the relevant requirements of the *Managing Urban Stormwater: Soils and Construction - Volume 1: Blue Book* (Landcom, 2004) guideline and the Erosion and Sediment Control Plan included in the CEMP required by condition C2.

B29. The Applicant must maintain the erosion and sediment control measures installed on-site in accordance with condition B30 for the duration of construction.

Discharge Limits

B30. The development must comply with section 120 of the POEO Act, which prohibits the pollution of waters, except as expressly provided for in an Environment Protection Licence or in accordance with any applicable regulations under the POEO Act.

Stormwater Management System

B31. Prior to the commencement of construction of the development's stormwater management system, the Applicant must finalise the system's detailed design. The final stormwater management system must:

- (a) be designed by a suitably qualified and experienced person(s);
- (b) be generally in accordance with the conceptual design in the EIS and Water Management Plan prepared by Arup Australia Pty Ltd, Reference MPARK2-ARP-BE-01-RP-C-000001, dated 4 July 2025 and letter titled Re; Macquarie Park Stage 2 – "Building E" SSDA (SSD-63235720) – Response to Flooding Related Request for Information, prepared by Northrop Pty Ltd, dated 29 August 2025;
- (c) be in accordance with applicable Australian Standards; and
- (d) ensure that the system capacity has been designed in accordance with *Australian Rainfall and Runoff* (Engineers Australia, 2016) and *Managing Urban Stormwater: Council Handbook* (EPA, 1997) guidelines.

B32. Prior to the commencement of operation, the Applicant must install the stormwater management system in accordance with the finalised detailed design (as required by condition B31) and ensure the system is operational.

B33. The Applicant must maintain the stormwater management system installed on the site under condition B32 for the duration of operation of the development.

Flood Management

B34. Prior to the commencement of construction of the development, the Applicant must prepare a Flood Emergency Response Plan. The Plan must form part of the CEMP required by conditions C2 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with the NSW State Emergency Service;
- (c) address the provisions of the *Floodplain risk management manual* (DPE, 2023) and *Support for emergency management planning* (DPE, 2023); and
- (d) include details of:
 - (i) the flood emergency responses for each construction phase of the development;
 - (ii) predicted flood levels;

- (iii) flood warning time and flood notification;
- (iv) assembly points and evacuation routes;
- (v) evacuation and refuge protocols; and
- (vi) awareness training for employees and contractors.

B35. The Applicant must:

- (a) submit a copy of the Flood Emergency Response Plan required by condition B34 to the Planning Secretary prior to the commencement of construction; and
- (b) implement the most recent version of the Flood Emergency Response Plan for the duration of construction of the development.

B36. Prior to the commencement of operation of the development, the Applicant must prepare a Flood Emergency Response Plan. The Plan must form part of the OEMP required by conditions C5 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with the NSW State Emergency Service;
- (c) address the provisions of the *Floodplain risk management manual* (DPE, 2023) and *Support for emergency management planning* (DPE, 2023); and
- (d) include details of:
 - (i) the flood emergency responses for each operational phase of the development;
 - (ii) predicted flood levels;
 - (iii) flood warning time and flood notification;
 - (iv) assembly points and evacuation routes;
 - (v) evacuation and refuge protocols; and
 - (vi) awareness training for employees and contractors.

B37. The Applicant must:

- (a) submit a copy of the Flood Emergency Response Plan required by condition B36 to the Planning Secretary prior to the commencement of operation; and
- (b) implement the most recent version of the Flood Emergency Response Plan for the duration of the development.

B38. All floor levels must be no lower than the 1% Annual Exceedance Probability flood plus 300 mm of freeboard.

B39. Any structures below the 1% Annual Exceedance Probability plus 300 mm of freeboard must be constructed from flood compatible building components.

CONTAMINATION

Unexpected Finds

B40. Prior to the commencement of construction, the Applicant must prepare an unexpected contamination finds procedure to ensure that potentially contaminated material is appropriately managed. The procedure must form part of the CEMP in accordance with condition C2 and must ensure any material identified as contaminated is managed in accordance with the POEO Act and its associated regulations. Details of the final management approach and the results of any associated testing must be submitted to the Planning Secretary within six weeks of the Applicant becoming aware of the contamination find, or as otherwise agreed to by the Planning Secretary.

ABORIGINAL HERITAGE

Unexpected Finds Protocol

B41. If any item or object of Aboriginal heritage significance is identified on site:

- (a) all work in the immediate vicinity of the suspected Aboriginal item or object must cease immediately;
- (b) a 10 m wide buffer area around the suspected item or object must be cordoned off; and
- (c) Heritage NSW must be contacted immediately.

B42. Work in the immediate vicinity of the Aboriginal item or object may only recommence in accordance with the provisions of Part 6 of the *National Parks and Wildlife Act 1974*.

NON-ABORIGINAL HERITAGE

Unexpected Finds Protocol

B43. If any non-Aboriginal archaeological relics are uncovered during any works being carried out for the development:

- (a) all work in the immediate vicinity of the suspected relic(s) must cease immediately;
- (b) Heritage NSW must be contacted immediately; and

- (c) the suspected relic(s) must be evaluated, recorded and, if necessary, excavated by a suitably qualified and experienced expert in accordance with the requirements of Heritage NSW.

B44. Work in the immediate vicinity of any suspected non-Aboriginal archaeological relic(s) must not recommence until this has been authorised by Heritage NSW.

HAZARDS AND RISK

Dangerous Goods

- B45. The quantities of dangerous goods stored and handled at the site must be below the threshold quantities listed in the Department's *Hazardous and Offensive Development Application Guidelines – Applying SEPP 33* at all times.
- B46. Dangerous goods, as defined by the Australian Dangerous Goods Code, must be stored and handled strictly in accordance with:
- (a) all relevant Australian Standards; and
 - (b) for liquids:
 - (i) a minimum bund volume requirement of 110% of the volume of the largest single stored volume within the bund; and
 - (ii) the EPA's *Storing and Handling of Liquids: Environmental Protection – Participants Manual*.
- B47. In the event of an inconsistency between the requirements of conditions B46(a) and B46(b), the most stringent requirement must prevail to the extent of the inconsistency.

Fire Safety Study

- B48. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the Planning Secretary may agree, the Applicant must prepare and submit, for the approval of the Planning Secretary, a Fire Safety Study (FSS) for the development. The FSS must:
- (a) meet the operational requirements of Fire and Rescue NSW;
 - (b) address the relevant aspects of:
 - (i) *Hazardous Industry Planning Advisory Paper No. 2, 'Fire safety study guidelines'* (DoP, 2011); and
 - (ii) *Best practice guidelines for contaminated water retention and treatment systems* (NSW HMPCC, 1994);
 - (c) consider the operational capability of local fire agencies and the need for the development to achieve an adequate level of on-site fire and life safety independence;
 - (d) verify the final design of the fire safety systems for the development complies with:
 - (i) *AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles* (Standards Australia, 2000);
 - (ii) *IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications* (IEC, 2022); and
 - (iii) *AS 1940:2017 The storage and handling of flammable and combustible liquids* (Standards Australia, 2017);
 - (e) consult with FRNSW and report on the outcome of consultation with FRNSW regarding the fire safety system's compliance with *Loss Prevention Data Sheet 5-32 – Data centres and related facilities* (FM Global Property, 2022); and
 - (f) include FRNSW's correspondence stating that the FSS has been prepared to their satisfaction.

In the event of an inconsistency between the requirements listed in subpoints (d)(i) to (d)(iii) above, the requirements as agreed to with FRNSW shall prevail to the extent of the inconsistency.

- B49. The Applicant must not commence construction of the development (except for construction of preliminary works that are outside the scope of the fire-related reports or studies) until the FSS required by condition B48 has been approved by FRNSW and the Planning Secretary.

Emergency Plan

- B50. No later than two months prior to the commencement of operation of the development, or within such further period as the Planning Secretary may agree, the Applicant must submit a comprehensive Emergency Plan and detailed emergency procedures for the development to the satisfaction of the Planning Secretary. The Emergency Plan must:
- (a) include consideration of the safety of all people outside of the development who may be at risk from the development;
 - (b) be prepared in accordance with the Department's *Hazardous Industry Planning Advisory Paper No. 1, 'Emergency Planning'* (DoP, 2011); and

- (c) include an Emergency Services Information Package in accordance with FRNSW's *Fire Safety Guideline – Emergency Services Information Package and Tactical Fire Plans* (FRNSW, 2019), to the satisfaction of FRNSW.

B51. The Applicant must:

- (a) implement the most recent version of the Emergency Plan and the Emergency Services Information Package (see condition B50) for the duration of the development; and
- (b) keep a copy of the Emergency Services Information Package on-site in a prominent position adjacent to the site entry points at all times.

WASTE MANAGEMENT

Statutory Requirements

- B52. Waste generated by the development must be secured and maintained within designated on-site waste storage areas until it is removed from the site.
- B53. The Applicant must assess and classify all liquid and non-liquid wastes to be removed from the site in accordance with the latest version of the EPA's *Waste Classification Guidelines Part 1: Classifying Waste* (EPA, 2014).
- B54. The Applicant must ensure:
- (a) all e-waste materials removed from the site are directed to a reuse or recycling facility lawfully permitted to accept the materials (or as otherwise agreed to by the Planning Secretary); and
 - (b) all other waste materials removed from the site are directed to a waste management facility or premises lawfully permitted to accept the materials.
- B55. Waste generated outside the site must not be received at the site for storage, treatment, processing, reprocessing, or disposal.

Pests, Vermin and Priority Weed Management

B56. The Applicant must:

- (a) implement suitable measures to manage pests, vermin and declared priority weeds on the site; and
- (b) inspect the site on a regular basis to ensure that these measures are working effectively, and that pests, vermin or priority weeds are not present on site in sufficient numbers to pose an environmental hazard or cause the loss of amenity in the surrounding area.

Note: For the purposes of this condition, priority weed has the same definition of the term in the Biosecurity Act 2015.

BIODIVERSITY

Tree Protection Measures

- B57. All trees identified for retention within the site are to be retained and protected throughout the life of the development. The trees are to be protected in accordance with the recommendations of the *Arboricultural Development Impact Assessment Report*, prepared by Birds Tree Consultancy, dated 10 December 2024 (Appendix P of the EIS) and the latest version of Australian Standard 4970:2009 – *Protection of Trees on Development*. All required tree protection measures must be implemented prior to the commencement of construction works at the site.
- B58. Prior to the commencement of construction, a project arborist with a minimum 'Australian Qualifications Framework – Level 5' certification is to be appointed. The project arborist is to:
- (a) oversee the tree protection measures required under this consent;
 - (b) oversee any works within the Tree Protection Zones established under this consent; and
 - (c) complete regular inspections of retained trees to ensure that protection measures specified in condition B57 are being adhered to for the duration of construction.
- B59. In the event that native fauna is found during tree removal works, all works in the immediate vicinity of the animal(s) must cease. Work in the immediate vicinity of the animal(s) must not recommence until a trained wildlife handler attends the site or the animal relocates itself.

VISUAL AMENITY

Landscaping

- B60. Prior to the commencement of operation, the Applicant must prepare a Landscape Management Plan to manage the development's landscaping works, to the satisfaction of the Planning Secretary. The plan must form part of an OEMP in accordance with condition C5, and must:
- (a) detail the species to be planted on-site;
 - (b) be consistent with the planting schedule, species, pot size, number of plants as described with the Landscape Detail Drawings prepared by Arcadia Landscape Architecture Pty Ltd, Revision G, dated 30 January 2025;

- (c) describe the monitoring and maintenance measures to manage revegetation and landscaping works; and
- (d) be consistent with the relevant Management and Mitigation Measures included in Appendix 2 of this consent.

B61. The Applicant must:

- (a) not commence operation until the Landscape Management Plan required by condition B60 is approved by the Planning Secretary;
- (b) implement the most recent version of the Landscape Management Plan approved by the Planning Secretary; and
- (c) maintain the landscaping and vegetation on the site in accordance with the most recent version of the approved Landscape Management Plan for the life of the development.

Lighting

B62. The Applicant must ensure the lighting associated with the development:

- (a) complies with the latest version of *AS 4282-2019 - Control of the obtrusive effects of outdoor lighting* (Standards Australia, 2019); and
- (b) is mounted, screened and directed in such a manner that it does not create a nuisance to surrounding properties or the public road network.

Signage and Fencing

B63. All signage and fencing must be erected in accordance with the development plans included in Appendix 1 of this consent.

Note: *This condition does not apply to temporary construction and safety related signage and fencing.*

PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING

ENVIRONMENTAL MANAGEMENT

Management Plan Requirements

- C1. Management plans required under this consent must be prepared in accordance with relevant guidelines, and include:
- (a) a condition compliance table for that plan;
 - (b) detailed baseline data (where required);
 - (c) details of:
 - (i) the relevant statutory requirements (including any relevant approval, licence or lease conditions);
 - (ii) any relevant limits or performance measures and criteria; and
 - (iii) the specific performance indicators that are proposed to be used to judge the performance of, or guide the implementation of, the development or any management measures;
 - (d) a description of the measures to be implemented to comply with the relevant statutory requirements, limits, or performance measures and criteria;
 - (e) a program to monitor and report on the:
 - (i) impacts and environmental performance of the development; and
 - (ii) effectiveness of the management measures set out pursuant to paragraph (d) above;
 - (f) a contingency plan to manage any unpredicted impacts and their consequences and to ensure that ongoing impacts reduce to levels below relevant impact assessment criteria as quickly as possible;
 - (g) a program to investigate and implement ways to improve the environmental performance of the development over time;
 - (h) a protocol for managing and reporting any:
 - (i) incident and any non-compliance (specifically including any exceedance of the impact assessment criteria and performance criteria);
 - (ii) complaint;
 - (iii) failure to comply with statutory requirements; and
 - (i) a protocol for periodic review of the plan.

Note: The Planning Secretary may waive some of these requirements if they are unnecessary or unwarranted for particular management plans.

CONSTRUCTION ENVIRONMENTAL MANAGEMENT PLAN

- C2. The Applicant must prepare a Construction Environmental Management Plan (CEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C3. As part of the CEMP required under condition C2 of this consent, the Applicant must include the following:
- (a) details of the community consultation and complaints handling procedure to be implemented during construction;
 - (b) Construction Noise and Vibration Management Plan (see condition B5);
 - (c) Construction Traffic Management Plan (see condition B20);
 - (d) Erosion and Sediment Control Plan(s) (see condition B28);
 - (e) a copy of the Flood Emergency Response Plan (see condition B34); and
 - (f) a copy of the development's Unexpected Contamination Finds Procedure (see condition B40).
- C4. The Applicant must:
- (a) not commence construction of the development until the CEMP required by condition C2 is approved by the Planning Secretary; and
 - (b) carry out construction of the development in accordance with the CEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

OPERATIONAL ENVIRONMENTAL MANAGEMENT PLAN

- C5. The Applicant must prepare an Operational Environmental Management Plan (OEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C6. As part of the OEMP required under condition C5 of this consent, the Applicant must include the following:
- (a) a description of the role, responsibility, authority and accountability of all key personnel involved in the environmental management of the development;

- (b) a description of the procedures that would be implemented to:
 - (i) keep the local community and relevant agencies informed about the operation and environmental performance of the development;
 - (ii) receive, handle, respond to, and record complaints, including a protocol for investigating noise complaints through monitoring conducted in accordance with the *Approved Methods for the Measurement and Analysis of Environmental Noise in NSW* (EPA, 2022);
 - (iii) resolve any disputes that may arise;
 - (iv) respond to any non-compliance;
 - (v) respond to emergencies;
- (c) Air Quality Management Plan (see condition B15);
- (d) a copy of the Workplace Travel Plan (see condition B25);
- (e) a copy of the Flood Emergency Response Plan (see condition B36); and
- (f) Landscape Management Plan (see condition B60).

C7. The Applicant must:

- (a) not commence operation until the OEMP required by condition C5 is approved by the Planning Secretary; and
- (b) operate the development in accordance with the OEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

REVISION OF STRATEGIES, PLANS AND PROGRAMS

- C8. Prior to the commencement of construction of any works associated with any modification to this consent, or within three months of:
- (a) the submission of an incident report under condition C10;
 - (b) the submission of a Compliance Report under condition C14;
 - (c) the submission of a Back-up Generator Incident Report under condition C19;
 - (d) the approval of any modification of the conditions of this consent; or
 - (e) the issue of a direction of the Planning Secretary under condition A2(b) which requires a review,
- the strategies, plans and programs required under this consent must be reviewed, and the Planning Secretary must be notified in writing of the outcomes of any review.

- C9. If identified as part of the review process (see condition C8) or considered necessary to improve the environmental performance of the development, the Applicant must ensure the strategies, plans and programs required under this consent are revised, to the satisfaction of the Planning Secretary.

The revised document(s) must be submitted to the Planning Secretary for approval within six weeks of the review process taking place, or in the case of a modification approving the construction of any works, prior to the commencement of construction of those works, or such other timing as agreed by the Planning Secretary.

Note: *This is to ensure strategies, plans and programs are updated on a regular basis and to incorporate any recommended measures to improve the environmental performance of the development.*

REPORTING AND AUDITING

Incident Notification, Reporting and Response

- C10. The Applicant must notify the Department within 24 hours of becoming aware of an incident. The notification must be made via the NSW planning portal (Major Projects) and address details of the incident, including:
- (a) the date, time and location;
 - (b) a brief description of what occurred and why it has been classified as an incident;
 - (c) a description of what immediate steps were taken in relation to the incident; and
 - (d) identifying a contact person for further communication regarding the incident.
- C11. The Applicant must provide the Department with a subsequent incident report in accordance with the requirements set out in Appendix 3 of this consent.

Non-Compliance Notification

- C12. Within seven days of becoming aware of any non-compliance, the Applicant must notify the Department of the non-compliance, in writing, via the NSW planning portal (Major Projects).
- C13. A non-compliance notification submitted under condition C12 must identify the development (including the development application number and name), set out the condition of this consent that the development is

non-compliant with, why it does not comply, the reasons for the non-compliance (if known), and what actions have been undertaken, or will be undertaken, and when, to address the non-compliance.

Note: A non-compliance which has been notified as an incident does not need to also be notified as a non-compliance.

Compliance Reporting

- C14. Within the first year of commencement of operation of the development, and in the same month each subsequent year (or such other timing as agreed by the Planning Secretary), the Applicant must submit a Compliance Report to the Planning Secretary reviewing the environmental performance of the development to the satisfaction of the Planning Secretary. Each Compliance Report must:
- (a) be prepared in accordance with the *Compliance Reporting Post Approval Requirements* (DPIE, 2020);
 - (b) identify any trends in the monitoring data over the life of the development;
 - (c) identify any discrepancies between the predicted and actual impacts of the development, and analyse the potential cause of any significant discrepancies; and
 - (d) describe what measures will be implemented over the next year to improve the environmental performance of the development.
- C15. The Applicant must make each Compliance Report publicly available no later than 60 days after submitting it to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Independent Audit

- C16. Within one year of the commencement of operation of the development, and every three years after, unless the Planning Secretary directs otherwise, the Applicant must commission and pay the full cost of an Independent Environmental Audit (Audit) of the development. Audits must:
- (a) be conducted and carried out in accordance with the Independent Audit Post Approval Requirements (Department 2020), or as updated from time to time and published on the Department's website;
 - (b) be led and conducted by a suitably qualified, experienced and independent team of experts whose appointment has been endorsed by the Planning Secretary; and
 - (c) be submitted to the satisfaction of the Planning Secretary within three months of commissioning the Audit (or within another timeframe agreed by the Planning Secretary).
- C17. In accordance with the specific requirements in the Independent Audit Post Approval Requirements (Department 2020), the Applicant must:
- (a) review and respond to each Independent Audit Report prepared under condition C16 of this consent;
 - (b) submit the response to the Planning Secretary and any other NSW agency that requests it, together with a timetable for the implementation of the recommendations;
 - (c) implement the recommendations to the satisfaction of the Planning Secretary; and
 - (d) make each Independent Audit Report and response to it publicly available no later than 60 days after submission to the Planning Secretary and notify the Planning Secretary in writing at least 7 days before this is done.

Back-up Generator Annual Report

- C18. Within fifteen (15) months of the commencement of operation, and in the same month each subsequent year (or such other timing as agreed to in writing by the Planning Secretary), the Applicant must prepare a Back-up Generator Annual Report to the satisfaction of the Planning Secretary. Each report must be submitted to the Planning Secretary and the EPA, and include:
- (a) an operations log for the back-up generators, detailing the:
 - (i) date, time, duration and purpose of each use (including, but not limited to: testing, maintenance activities and use during a power outage event);
 - (b) details regarding the:
 - (i) total number of hours the back-up generators were operated for;
 - (ii) total quantity of diesel fuel used by the back-up generators;
 - (iii) results of the annual emissions testing (see condition B13);
 - (iv) the development's compliance with the relevant emission limits in the Protection of the Environment Operations (Clean Air) Regulation 2022;
 - (v) load calculations to determine compliance with NOx load limits for the back-up generators;
 - (c) a diesel fuel storage log, documenting the quantity of diesel fuel stored on site at any one time in litres and tonnes, with daily recorded values, expressed in litres and tonnes, for the reporting period; and
 - (d) evidence of the development's compliance with conditions A7 and B12.

Back-up Generator Incident Report

C19. Within 30 days of the back-up generators being used to power any part of the development during a power outage event (or as otherwise agreed to by the Planning Secretary), the Applicant must prepare and submit a Back-up Generator Incident Report for the development to the satisfaction of the Planning Secretary. The report must include:

- (a) details regarding the:
 - (i) date and time of the power outage event;
 - (ii) date and time of back-up generator operation;
 - (iii) identification of the back-up generators used and the total number of generators operated;
 - (iv) duration of operation for each generator and the total duration of generator use;
 - (v) total quantity of diesel fuel used by the back-up generators;
 - (vi) total amount of electricity produced by the back-up generators;
- (b) if relevant, confirmation regarding whether neighbouring properties were made aware that the development's back-up generator system was operating (see condition B15(e));
- (c) assessment of any air quality impacts resulting from the operation of the back-up generators; and
- (d) assessment and recommendation of additional measures that could be implemented to reduce future impacts, including but not limited to reduced likelihood of generator operation and retrofit of generator emission controls.

Monitoring and Environmental Audits

C20. Any condition of this consent that requires the carrying out of monitoring or an environmental audit, whether directly or by way of a plan, strategy or program, is taken to be a condition requiring monitoring or an environmental audit under Division 9.4 of Part 9 of the EP&A Act. This includes conditions in respect of incident notification, reporting and response, non-compliance notification, compliance reporting and independent auditing.

Note: For the purposes of this condition, as set out in the EP&A Act, "monitoring" is monitoring of the development to provide data on compliance with the consent or on the environmental impact of the development, and an "environmental audit" is a periodic or particular documented evaluation of the development to provide information on compliance with the consent or the environmental management or impact of the development.

ACCESS TO INFORMATION

C21. At least 48 hours before the commencement of construction of the development and for the life of the development (or such other time as agreed by the Planning Secretary), the Applicant must:

- (a) make the following information and documents (as they are obtained or approved) publicly available on its website:
 - (i) the documents referred to in condition A2 of this consent;
 - (ii) all current statutory approvals for the development;
 - (iii) all approved strategies, plans and programs required under the conditions of this consent with the exception of any hazard and risk related studies;
 - (iv) regular reporting on the environmental performance of the development in accordance with the reporting requirements in any plans or programs approved under the conditions of this consent;
 - (v) a comprehensive summary of the monitoring results of the development, reported in accordance with the specifications in any conditions of this consent, or any approved plans and programs;
 - (vi) a summary of the current stage and progress of the development;
 - (vii) contact details to enquire about the development or to make a complaint;
 - (viii) a complaints register, updated quarterly;
 - (ix) the Compliance Report of the development;
 - (x) any other matter required by the Planning Secretary; and
- (b) keep such information up to date, to the satisfaction of the Planning Secretary.

APPENDIX 1 DEVELOPMENT LAYOUT PLANS

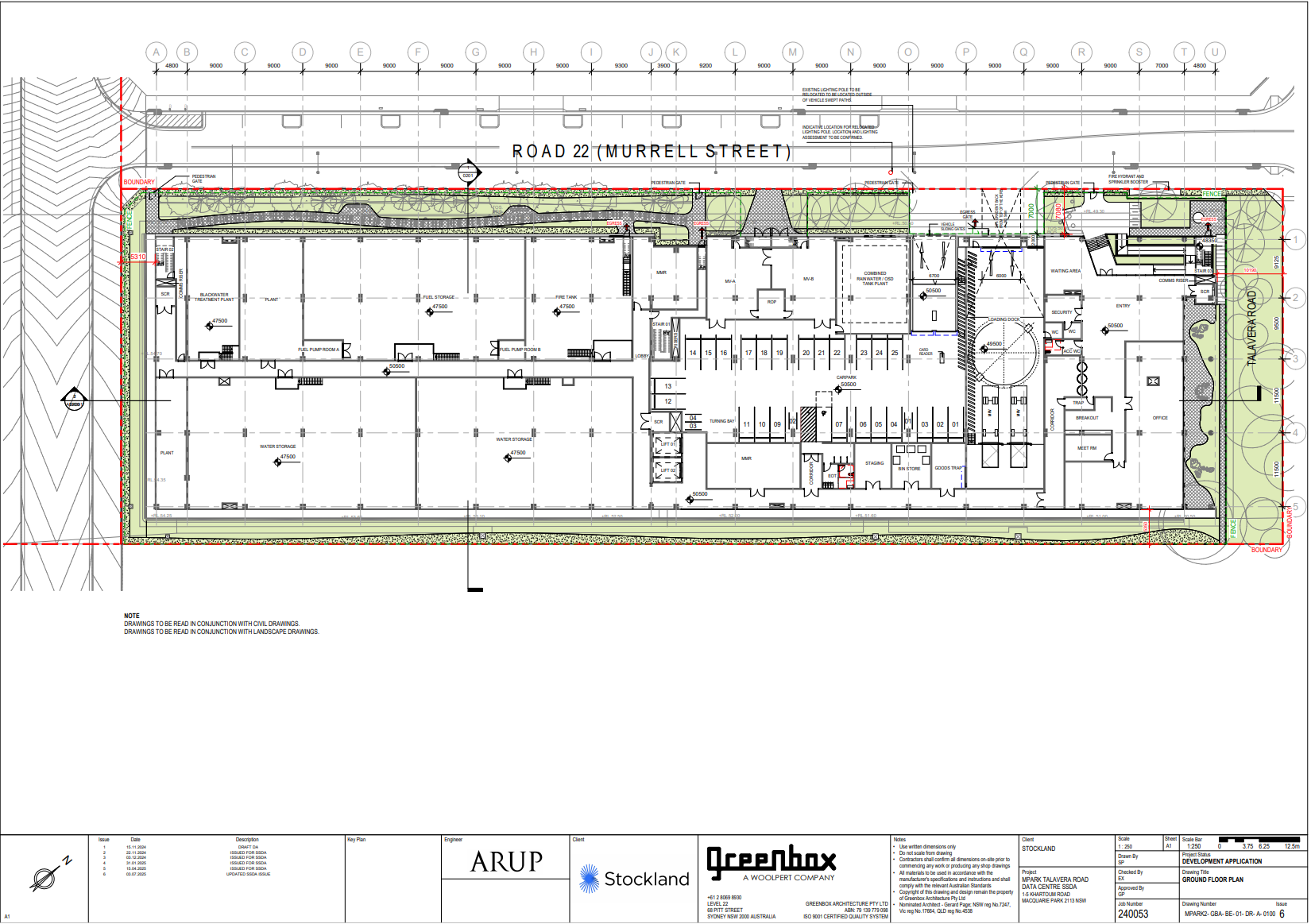
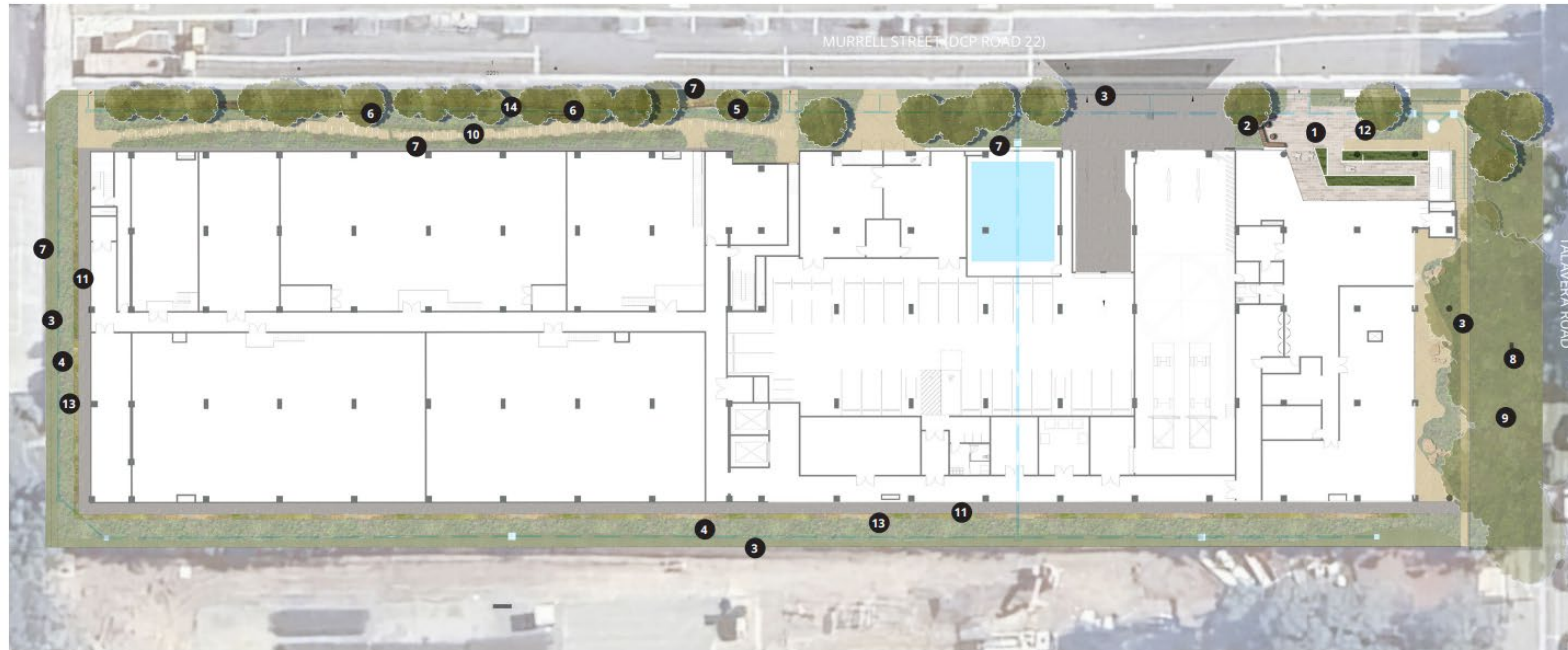


Figure 1: Ground Floor Plan

Landscape Masterplan



KEY

- | | | | | |
|--|--|--|--|---|
| 1 ENTRY PLAZA | 4 LOW MID-STORY PLANTING WITH LARGER SHRUBS LOCATED CLOSER TO BUILDING TO ALLOW FENCE TO REMAIN UNINTERRUPTED | 6 BREAKOUT SEATING NODES | 9 LOW SUPPLEMENTARY BATTER PLANTING OFFSET FROM EXISTING TREES | 12 BIKE RACKS |
| 2 SEATING AREA WITH FIXED AND FLEXIBLE FURNITURE | 5 PROPOSED TALL TREES WITH HIGH CANOPIES TO SOFTEN THE BUILT MASS AND ENHANCE URBAN CANOPY WHILE MAINTAINING CLEAR SIGHTLINES AT GROUND LEVEL. | 7 LOW NATIVE PLANTING EXISTING TREES TO BE RETAINED TO MAINTAIN A VISUAL BUFFER TO TALAVERA ROAD | 10 ACCESS/MAINTENANCE PATH WITH GRAVEL AND STEPPERS | 13 LOW GRASS PLANTING AROUND FRENCH DRAIN |
| 3 2.4M SECURITY FENCE | | | 11 CONCRETE ACCESS/ MAINTENANCE PATH | 14 BIORETENTION AREA PLANTING |

18 MPark Talavera Road Data Centre | Landscape SSDA | Project No. 24-1075



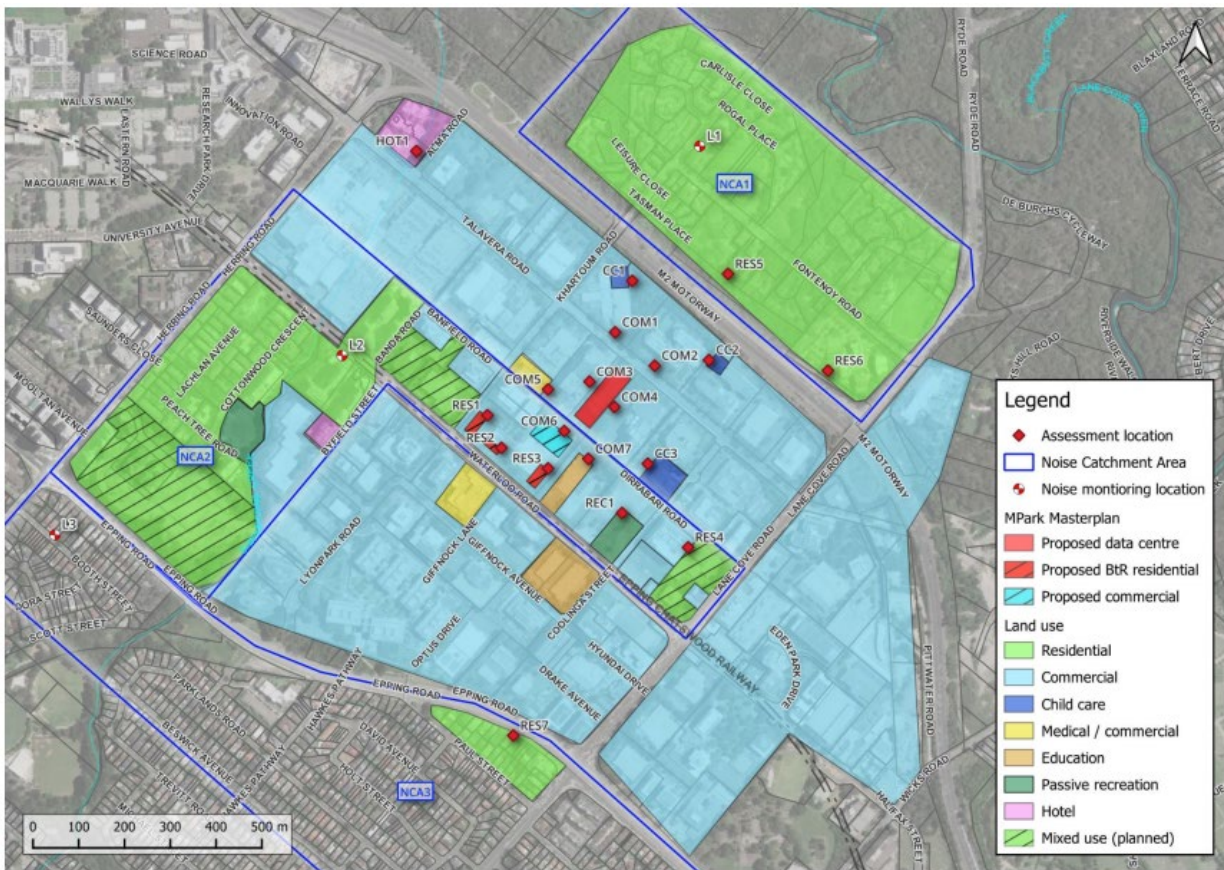
1:500 @ A3 0 2 5 10 15 20m

ARCADIA

Figure 2: Landscape Master Plan

Job No.	Drawing Number	Drawing Title	Drawing Issue	Date
Architectural Drawings prepared by Greenbox Architecture Pty Ltd				
240053	MPARK2-GBA-BE-01-DR-A-0040	Demolition Plan	1	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0100	Ground Floor Plan	6	03/07/2025
240053	MPARK2-GBA-BE-01-DR-A-0101	Level 01 Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0102	Level 02 Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0103	Level 03 Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0104	Level 04 Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0105	Level 05 Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0106	Lower Roof Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0106	Upper Roof Plan	3	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0150	North East & South West Elevations	4	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0151	North West Elevation	4	02/12/2024
240053	MPARK2-GBA-BE-01-DR-A-0152	South East Elevation	3	02/12/2024
Civil Drawings prepared by Arup Australia Pty Ltd				
304093-00	MPARK2-ARP-BE-01-DR-C-0101	EROSION AND SEDIMENT CONTROL PLAN	02	31/01/2025
304093-00	MPARK2-ARP-BE-01-DR-C-0201	BULK EARTHWORKS CUT AND FILL PLAN	02	31/01/2025
304093-00	MPARK2-ARP-BE-01-DR-C-0301	CIVIL WORKS AND STORMWATER PLAN	02	31/01/2025
304093-00	MPARK2-ARP-BE-01-DR-C-0611	STORMWATER CATCHMENT PLAN	02	31/01/2025
Landscape Plans prepared by Arcadia				
24-1075	L_100	Masterplan	C	29/01/2025
24-1075	L_400	Planting Schedule	C	29/01/2025
24-1075	L_401	General Arrangement Plan 1	C	29/01/2025
24-1075	L_402	General Arrangement Plan 2	C	29/01/2025
24-1075	L_403	General Arrangement Plan 3	C	29/01/2025
24-1075	L_404	General Arrangement Plan 4	C	29/01/2025
24-1075	L_405	General Arrangement Plan 5	C	29/01/2025
24-1075	L_406	General Arrangement Plan 6	C	29/01/2025
24-1075	L_601	Typical Details	C	29/01/2025
24-1075	L_700	Landscape Specification	C	29/01/2025

APPENDIX 2 SENSITIVE RECEIVER LOCATIONS



APPENDIX 3 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES



APPENDIX D

MITIGATION MEASURES

SEARS	Potential Impact	Mitigation Measure	Reference
Traffic, Transport and Accessibility	Impacts on road network from construction and operational phase.	<u>Construction:</u> - A draft CTMP outlines measures to manage traffic during demolition, excavation, and construction phases, including: - Truck Routes: Designated routes via major roads (e.g., Talavera Road, Lane Cove Road, M2 Motorway) to minimise disruption on local streets. - On-Site Operations: Loading and unloading of construction materials will occur within an on-site construction compound to avoid street congestion. - Traffic Control: Qualified traffic controllers will manage vehicle movements to ensure safety and minimise disruptions. - Work Zones and Hours: Specific work zones will be used, and construction activities will occur during regulated hours to reduce impacts on traffic flow. To mitigate construction-phase impacts: - Scheduling Deliveries: Deliveries will be scheduled during off-peak hours. - Community Consultation: Engaging with nearby residents and businesses to provide advance notice of construction activities. - Monitoring and Adjustments: Regular monitoring of traffic conditions and flexibility to adjust measures as needed. <u>Access Management:</u> - Separate driveways for parking and loading will minimise conflict between vehicles and pedestrians. - All vehicle entry and exit points will comply with Australian Standards (AS2890) for safe design, ensuring sightlines and circulation are adequate. - The proposed development includes appropriate design measures and management procedures to ensure that service and staff vehicles will not stand within the public domain while waiting to access the site. - The development will incorporate a dedicated loading dock with two loading bays suitable for Medium Rigid Vehicles (MRVs) up to 8.8 metres in length. The loading dock has been designed to support the operational requirements of the data centre, including equipment replacement, plant and server installation, and general deliveries. - Given the nature of the use, the development is expected to generate low volumes of service traffic—typically two to three service vehicles per day. All deliveries will be scheduled and coordinated to avoid vehicle queuing and ensure efficient site access. To support this, a Loading Dock Management Plan (LDMP) will be prepared, outlining protocols and responsibilities to manage deliveries and maintain safe, efficient vehicle movements. The LDMP will address: - Roles and responsibilities of key site personnel, including a designated loading dock manager; - Operational and safety measures for deliveries, including scheduling procedures and delivery driver protocols; and - Internal traffic management, including signage, line marking, and security measures.	Section 6.1 Appendix S

SEARS	Potential Impact	Mitigation Measure	Reference
		- All delivery drivers will be required to call ahead to the loading dock manager prior to arrival. Upon confirmation, the manager will open the security gate, allowing direct access to the dock without requiring the vehicle to wait on the public road. Exiting vehicles will trigger a loop detector within the driveway, automatically opening the gate for egress. - The development includes a basement car park comprising 25 spaces for staff. Access to the car park will be controlled via a security gate and roller shutter system, with all authorised personnel issued remote access devices. This arrangement ensures that staff can enter without delay and that vehicles will not need to wait on the public road. - Both the loading dock and basement car park access points have been designed to ensure that all vehicles can enter the site without standing or queuing on the public road. These arrangements directly address Council's concerns, and the applicant has no objection to a condition of consent requiring implementation of the Loading Dock Management Plan and final confirmation of access design during the Construction Certificate phase. <u>Green Travel Plan:</u> - Promotes public transport usage and carpooling. - Provides end-of-trip facilities (e.g., showers, lockers, bicycle parking) to encourage walking and cycling. - Public transport information and travel planning resources for staff and visitors to reduce reliance on private vehicles.	
Trees and Landscaping	Tree removal and impacts to retained trees	The AIA recommends the following mitigation measures to protect the retained trees during the construction phase as summarised below: - Establish Tree Protection Zones (TPZs) for all trees to be retained, following the guidelines in AS4970-2009. - Protective fencing will be installed around TPZs to prevent unauthorized access and physical damage during construction. - Signage will be placed on fences to inform workers of tree protection requirements. - Regular arborist inspections during construction to monitor the health and stability of retained trees. - Excavation within TPZs will use non-destructive methods, such as Air Spades or vacuum excavation, to avoid damaging critical roots. - Structural roots larger than 25mm in diameter will not be cut unless deemed unavoidable, and any necessary cuts will be made under the supervision of a qualified arborist. - A total of 32 new trees must be planted to offset the removal of 64 existing trees. - Species selection will focus on native and endemic varieties to enhance biodiversity, restore canopy cover, and align with the site's landscaping goals. - Use mulching and watering to maintain soil health and moisture levels within TPZs during construction. - Site access and construction storage areas will be located away from TPZs to prevent soil compaction and contamination. - Employ directional under boring for stormwater and utility installations near retained trees to minimise root disturbance. - Protect tree roots from damage by using root barriers where necessary. - Implement a post-construction maintenance plan, including regular inspections, mulching, and watering for both retained and newly planted trees. - Fertilisation and pest management will be applied as needed to ensure tree health and growth. - Retained trees along Talavera Road and other landscaped areas will be integrated into a cohesive landscaping plan.	Section 6.1 Appendix P
Noise and Vibration	Impacts on surrounding buildings from construction and operational phase	To mitigate the potential noise and vibration impacts, the NVIA has recommended the following: <u>Construction Noise and Vibration</u> Preparation of a Construction Noise and Vibration Management Plan (CNVMP) prior to the commencement of any works on site.	Section 6.1 Appendix K

SEARS	Potential Impact	Mitigation Measure	Reference
		- The CNVMP must identify all potentially impacted receivers, assess the potential noise and vibration impacts from the project and provide details regarding how the impacts would be minimised through use of all feasible and reasonable mitigation measures. It must also contain procedures for handling complaints and compliance monitoring requirements. In addition to the requirement to prepare a CNVMP, the following general mitigation measures should be adopted to reduce construction noise impacts: - Limit noisy activities to standard construction hours (7:00am – 6:00pm on weekdays, 8:00am – 1:00pm on Saturdays). - Use noise barriers, acoustic enclosures, and quieter equipment where feasible. - Maintain community engagement by notifying affected stakeholders in advance of noisy activities. - Maintain minimum safe distances between vibration-intensive equipment and sensitive structures. - Use low-vibration methods where possible, such as pre-drilling for piling. - Monitor vibration levels at nearby sensitive receivers to ensure compliance with guidelines. - Schedule deliveries and movements of construction vehicles during off-peak hours. - Implement traffic controllers to manage site access and reduce queuing noise near sensitive areas. <u>Operational Noise</u> - Use low-noise cooling towers with speed reduction during low ambient conditions (e.g., at night). - Install acoustic enclosures and attenuators for generators, AHUs, and other rooftop equipment. - Use mufflers and lined discharge ducts for generator exhaust systems. - Utilize concrete walls and building envelope materials to effectively contain internal noise from data halls and plant rooms. - Conduct generator testing during daytime hours only to minimise noise disturbance. - Limit testing to one generator at a time to reduce cumulative noise impacts. - Reduce cooling tower fan speeds at night to meet stricter nighttime noise criteria. - Optimise placement of rooftop equipment to minimise noise propagation to sensitive receivers. - Implement a noise monitoring program to ensure ongoing compliance with regulatory thresholds. - Conduct regular maintenance of noise control equipment to maintain effectiveness.	
Air Quality	Impacts of construction activities in relation to dust and human health at sensitive receptors	To mitigate the potential air quality impacts, the AQIA has recommended the following: <u>Construction Air Quality</u> Contractor to prepare a site-specific dust/air quality management plan as part of the Construction Environmental Management Plan, implementing mitigation measures including (but not limited to): - Dust suppression techniques, such as water spraying and covering stockpiles/exposed areas. street cleaning, use of dust screens etc - Maintenance of vehicles, plant and equipment in accordance with manufacturer's instructions. - Maintain sufficient water content on the soil across the general construction footprint boundary to minimise dust impact from wind erosion. - Methods to manage works during strong winds or other adverse weather conditions. Where possible, scheduling construction activities during favourable weather conditions to reduce dust dispersion. - Where applicable, a progressive rehabilitation strategy for exposed surfaces.	Section 6.1 Appendix J

SEARS	Potential Impact	Mitigation Measure	Reference
		- Explanation of when the air quality, suppression and management measures need to be applied, who is responsible, and how effectiveness will be assessed. - Use of low-emission construction equipment and machinery. - Limiting vehicle idling. - Monitoring (such as visual dust monitoring) and implementing a complaints management system to address air quality concerns promptly. - Pre-start checklists to make sure construction vehicles etc are in good working order. <u>Operational Air Quality</u> - Vertical exhaust stacks positioned to optimise pollutant dispersion. - Total generator testing time is limited to 72 hours per year (excluding cooldown time) across all units to minimise emissions. - Limit testing to daytime hours (7am – 6pm) when atmospheric dispersion conditions are favourable. - Conduct testing of one generator at a time to minimise cumulative impacts. - Where possible, minimise back-to-back generator maintenance testing (e.g. test one generator every hour). - Where high impacts are predicted (exceedance of air quality assessment criteria), additional at-source reduction of emissions will be assessed and implemented as appropriate, such as low-NO_x generator models and selective catalytic reduction (SCR) systems. - Where possible, maintenance schedules for the proposed data centre are coordinated with adjacent data centres to prevent simultaneous testing of multiple generators, reducing cumulative impacts on air quality. - Design in compliance with Australian Standard AS 1940, minimising evaporative losses. - Operations will adhere to the NSW Protection of the Environment Operations (Clean Air) Regulation 2022, ensuring all emissions are within permissible limits. - Regular maintenance to prevent leaks and minimise emissions. - Conduct regular compliance checks during operation and testing. - Implement practical measures to reduce the duration of power outage to ensure that standby generators operate for the least amount of time possible (adoption of high voltage utility power supply to provide much higher reliability than a conventional utility and adoption of dual redundant utility feeds to provide a secondary feed in the event of a primary power supply failure).	
Flooding	Potential Flood Impacts on the site and its surrounds	As outlined in the updated FIRA, the proposed mitigation measures to address flood impacts at the MPark Talavera Road Data Centre include the following: - Figures presented in Attachment 1 of the updated FIRA demonstrate that the eastern portion of the site has been rendered largely flood free following the approval of the modification to 17–23 Talavera Road (REF: SSD-24299707-Mod-1). Accordingly, the flood façade previously proposed along the eastern edge of the building is no longer considered necessary as a flood mitigation measure. - A dedicated drainage swale must be implemented along the eastern boundary to safely manage and redirect overland flows away from the site and neighbouring properties. Section 6.2 Appendix BB Appendix D - Mitigation Measures Table 4 SEARS Potential Impact Mitigation Measure Reference - The building's Finished Floor Levels must exceed the 1% AEP flood level by a minimum of 300mm, complying with and surpassing the requirements of the City of Ryde Council's Stormwater Technical Manual. - On-site detention systems and dedicated stormwater infrastructure must manage runoff and maintain pre-development flow conditions, minimizing downstream impacts.	Section 6.2 Appendix BB

SEARS	Potential Impact	Mitigation Measure	Reference
		- A Flood Emergency Response Plan (FERP) must be prepared to provide guidance for building occupants during extreme flood events, ensuring safety and minimizing potential disruptions. - Critical infrastructure, such as electrical and mechanical systems, must be located above flood-prone levels. - Landscaped areas and permeable surfaces must be included to reduce surface runoff and assist with infiltration where possible.	
Hazard and Risk	Combustion of dangerous goods	To ensure compliance with the requirements for the Work Health and Safety Regulation 2017 (WHS Regulation), the following mitigation measures must be adopted: - An outer warning placard shall be prominently displayed at workplace entrances where emergency services may enter in accordance with Regulation 349. The placard shall be clearly legible, separate from other signs and otherwise compliant with Schedule 13. - Placards shall be prominently displayed on or near the diesel storage tanks in accordance with Regulation 350. The placards shall be clearly legible, separate from other signs and otherwise compliant with Schedule 13. - A manifest of all Schedule 11 chemicals shall be prepared in accordance with Regulation 347 and Schedule 12 of the WHS Regulation. - SafeWork NSW shall be notified of diesel storage exceeding manifest quantities in accordance with Regulation 348 of the WHS Regulation. - An emergency plan shall be prepared for the site and provided to Fire and Rescue NSW as per the requirements of Regulation 361 and Division 4 of Part 3.2 of the WHS Regulation.	Section 6.1 Appendix DD
Aboriginal Heritage	Impacts on cultural heritage	To mitigate potential impacts related to Aboriginal cultural heritage, the ACHAR recommended the following be implemented during the construction phase of the project: - As the proposed works are unlikely to cause harm to Aboriginal objects, it is recommended that no further investigation is required for the present development and that the proposed development can proceed in line with the Archaeological Unexpected Finds Procedure and Human Remains Procedure outlined below. - All works within the vicinity of the find must immediately stop. The find must not be moved 'out of the way' without assessment. The find must be cordoned off and signage installed to avoid accidental impact. - The site supervisor or another nominated site representative must contact either the Project archaeologist (if relevant) or Heritage NSW (Enviroline 131 555) to contact a suitably qualified archaeologist. - The nominated archaeologist must examine the find, provide a preliminary assessment of significance, record the item and decide on appropriate management measures. Such management may require further consultation with Heritage NSW, preparation of a research design and archaeological investigation/salvage methodology and registration of the find with the Aboriginal Heritage Information Management System (AHIMS). - Depending on the significance of the find, reassessment of the archaeological potential of the subject area may be required and further archaeological investigation undertaken. - Reporting may need to be prepared regarding the find and approved management strategies. - Works in the vicinity of the find can only recommence upon receipt of approval from Heritage NSW. - In the unlikely event that human remains are uncovered during any site works, the following protocols must be undertaken: - All works within the vicinity of the find must immediately stop. The find must be cordoned off and signage installed to avoid accidental impact. - The site supervisor or other nominated manager must notify the NSW Police and Heritage NSW (Enviroline 131 555). - The find must be assessed by the NSW Police, which may include the assistance of a qualified forensic anthropologist. - Management recommendations are to be formulated by the NSW Police, Heritage NSW and site representatives.	Section 6.1 Appendix P

SEARS	Potential Impact	Mitigation Measure	Reference
		Works are not to recommence until the find has been appropriately managed.	
Social Impact	Potential positive and negative social impacts associated with the proposal	A number of mitigation measures are suggested within the SIA. Many of the mitigation measures are detailed in the respective technical reports. Further mitigation measures below are proposed in the SIA: Construction Phase: - Implement a Construction Traffic Management Plan (CTMP) to minimise traffic disruptions, including the scheduling of heavy vehicle movements during off-peak hours. - Use dust suppression techniques and ensure compliance with noise regulations to minimize environmental impacts on neighbouring properties. - Maintain open communication with stakeholders through regular updates, newsletters, and contact points to address concerns promptly. Operational Phase: - Landscaping Enhancements: Incorporate landscaping, including native plant species and tree planting, to improve visual amenity, soften the built form, and maintain ecological value. - Pedestrian-Friendly Design: Provide wide pedestrian pathways and landscaped setbacks to create a welcoming streetscape that enhances public access and usability. - Visual Integration: Use high-quality materials, architectural articulation, and façade treatments to reduce the perception of bulk and height. Community Engagement: - Ongoing engagement with local stakeholders, businesses, and residents to ensure that feedback is addressed during construction and operational phases. - Provide transparency and regular communication about project timelines, traffic management, and operational impacts.	Section 6.1 Appendix M
Infrastructure Requirements and Utilities	High usage of water and electricity	To mitigate the potential impacts related to electricity and water usage, the Infrastructure Requirements Report recommends the following: Electrical Infrastructure: - High Demand: Use dedicated 33kV feeders with N-1 redundancy to meet power needs and reduce strain on the local grid. - Back-Up Generators: - Install acoustic treatments to minimise noise. - Use bunded areas and spill kits to manage fuel spills. - Comply with AS1940 standards for fire safety and emissions control during operation. - Fire Risks: Design high-voltage switching rooms and generator systems per Australian Standards to minimise fire and explosion risks. Water Supply: - High Demand: Install rainwater harvesting and storage tanks to supplement potable water use. - Pressure Management: Coordinate with Sydney Water to upgrade infrastructure, ensuring adequate flow and pressure. Sewerage: - Capacity Management: Separate industrial and soil waste systems, with recirculation and pre-treatment to minimise wastewater discharge. - Containment: Install a firewater containment tank to prevent contaminated water from entering the sewer system during fire events. Stormwater:	Section 6.1 Appendix L

SEARS	Potential Impact	Mitigation Measure	Reference
		- Runoff Control: Use on-site detention tanks and water-sensitive urban design (WSUD) measures to manage runoff and improve water quality. - Infrastructure Protection: Protect and integrate existing stormwater infrastructure into the development. Telecommunications: - Redundancy: Design four separate telecommunications entry points with a minimum 20m separation or fire segregation. - Path Diversity: Ensure multiple pathways minimise risks of concurrent damage to connectivity. Gas: - Decommissioning: Disconnect and cap existing gas lines during demolition. - Alternative Energy: Rely entirely on electricity and diesel generators, eliminating operational impacts on gas infrastructure	
Greenhouse Gas Emissions	Impacts to greenhouse gas emissions	The GHG Assessment recommends a series of mitigation measures. During construction: - Use low-carbon materials, such as green concrete and recycled steel, to reduce embodied emissions from construction. - Preference for locally sourced materials to minimise transport emissions. - Implement efficient site operations, including minimizing idling times for machinery and optimising construction schedules to reduce energy use. - Utilize modern, fuel-efficient machinery to limit emissions from diesel use. - Develop and implement a Construction Waste Management Plan to maximise material reuse and recycling, reducing emissions associated with landfill disposal. - Incorporate temporary renewable energy solutions, such as solar-powered equipment, where feasible, to reduce reliance on diesel generators During operations: - Design the facility to achieve a 5-star NABERS Energy rating for the office component, incorporating advanced energy-efficient systems for lighting, heating, ventilation, and cooling. - Utilise high-performance insulation and energy-efficient glazing to reduce heating and cooling loads. - Install on-site solar photovoltaic systems to offset operational energy demand and reduce reliance on grid electricity. - Limit diesel generator operation to emergency scenarios and routine maintenance, ensuring emissions are minimised and comply with environmental regulations. - Regularly monitor and report greenhouse gas emissions to ensure ongoing compliance with sustainability targets. - Adopt energy management systems to track and optimise energy use in real-time.	Section 6.1 Appendix HH
Contamination	Disturbance of contaminated soil and impacts on land, air, water, and users and occupants of the site.	Douglas Partners recommends that the following be completed prior to the commencement of demolition and construction: - Based on the identified potential sources of contamination and data gaps between test locations an unexpected finds protocol should be prepared to manage potential finds during demolition, excavation and construction (such as asbestos); - Formal waste classification of the fill and natural soils (following demolition) is completed. Consideration should also be given to preparation of an ENM assessment of the fill (particularly below the surface layer, top 0.3 to 0.5m); and - A supplementary round of groundwater well development and sampling be undertaken to enable further testing of heavy metals and PFAS to confirm the concentrations and to determine the level of treatment which may be required during dewatering.	Section 6.2 Appendix N

SEARS	Potential Impact	Mitigation Measure	Reference
Ecologically Sustainable Development	Achieving a high level of ESD	The following initiatives have been provided in the ESD Report. In addition to these a number of opportunities to further enhance the ESD outcomes are provided in the ESD Report which will be investigated during detailed design: Energy - Envelope design using insulation, high performance selective glazing and external shading on appropriate elevations to achieve Section J envelope minimum compliance, balanced with allowing daylight into office spaces to reduce the reliance on artificial lighting. - Efficient LED lighting with motion sensing throughout. - Provision of EV charging stations. - Metering and monitoring of energy consumption. - High albedo materials to reduce Heat Island Effect, including high ‘Solar Reflectance Index’ ‘cool roof’ cladding materials and paving. Water - Efficient air-side HVAC systems to reduce heat rejection requirements. - Extensive use of native and indigenous planting with low water requirements. - Rainwater collection, for cooling tower water top-up and irrigation. - Efficient fixtures and fittings with high WELS ratings. - Prioritising permeable finishes and paving. Material Resources and Waste - A materials and waste recovery audit will be conducted on the existing building prior to demolition. This aims to identify opportunities to minimise waste to landfill and optimise circular reuse of materials back into the economy. - Development of a construction and demolition waste management plan, detailing all major waste streams generated, including disposal and diversion rates. - Consideration of low carbon, high Portland cement replacement concrete, arc furnace produced steel, high recycled content lower embodied carbon aluminium for glazing systems. - Cradle-to-gate life cycle assessment of embodied carbon and other materials impacts. - Provision of on-site separation of waste streams to maximise diversion from landfill.	Section 6.2 Appendix CC
Waste	Waste associated with the construction of the data centre	The CDWMP and OWMP provides the following mitigation measures: - Implement recycling programs to recover valuable materials from waste during demolition and construction stages. - Encourage practices that reduce waste generation at the source, such as using fewer materials or opting for less packaging. - Implement recycling programs to recover valuable materials from ongoing operational waste. - Conduct campaigns to inform the community about proper waste disposal and the benefits of reducing waste. - Ensure proper management and disposal of all waste streams. - Implement data collection and reporting systems for waste management activities. - Regularly review and update waste management plans to comply with environmental regulations. - In terms of potentially hazardous waste:	Section 6.2 Appendix T Appendix U

SEARS	Potential Impact	Mitigation Measure	Reference
		– Contaminated material stockpiled on site will be minimised as far as possible and should be stored on HDPE liner, in a bunded location which is protected from inclement weather. – Sediment fences should be installed around the base of stockpiles and the stockpiles should be covered. Where excavated material requires validations, samples should be taken for NATA laboratory testing as per the requirements of the contamination assessment prior to restoration works, backfilling exercises and disposal. – Any trucks carrying contaminated materials should be securely and completely covered immediately after loading the materials (to prevent windblown emissions and spillage) and must be licensed by the NSW Environmental Protection Authority (EPA). – Decontamination of all equipment prior to demobilisation from the site is important so that contaminated materials are not spread off-site.	
Geotechnical	Impacts of construction stormwater, sediment and site run-off	The Geotechnical Investigation recommends the following: ▪ Use of shoring systems such as soldier piles with shotcrete panels to stabilize excavations. ▪ Installation of granular working platforms for heavy equipment in soft soil zones. ▪ Preparation of a detailed Dewatering Management Plan (DMP) following additional monitoring.	Section 6.2 Appendix O
Water Management	Potential impacts of stormwater on site and surrounding sites	The Water Management Plan recommends the following: ▪ Incorporation of Water Sensitive Urban Design (WSUD) elements, including bio-retention systems <u>rainwater harvesting, gross-pollutant traps and litter buckets</u>, to improve water quality by filtering pollutants. ▪ Installation of Gross Pollutant Traps (GPTs) to capture litter, sediment, and debris before stormwater is discharged into the municipal drainage system. ▪ <u>On-site detention has been incorporated into the stormwater design in accordance with City of Ryde Council requirements.</u> ▪ <u>Oil and water separators are proposed to serve higher risk areas such as fuel fill points, which are located undercover inside the building, to minimise sewage contamination.</u> ▪ Sediment and erosion control measures, including silt fences and sediment <u>traps</u> basins, will be implemented to prevent pollution during construction activities. ▪ Regular monitoring <u>and maintenance</u> ensure the effectiveness of temporary systems and compliance with environmental standards.	Section 6.2 Appendix V

APPENDIX 4 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS

WRITTEN INCIDENT NOTIFICATION REQUIREMENTS

1. All incident notifications and reports must be submitted via the NSW planning portal (Major Projects).
2. The Applicant must provide notification as required under these requirements, even if the Applicant fails to give the notification required under condition C10 or, having given such notification, subsequently forms the view that an incident has not occurred.
3. Within **7 days** (or as otherwise agreed to by the Planning Secretary) of the Applicant making the immediate incident notification (in accordance with condition C10), the Applicant is required to submit a subsequent incident report that:
 - (a) identifies how the incident was detected;
 - (b) identifies when the Applicant became aware of the incident;
 - (c) identifies any actual or potential non-compliance with conditions of consent;
 - (d) identifies further action(s) that will be taken in relation to the incident;
 - (e) a summary of the incident;
 - (f) outcomes of an incident investigation, including identification of the cause of the incident;
 - (g) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence, including the period for implementing any corrective and/or preventative actions; and
 - (h) details of any communication with other stakeholders regarding the incident.
4. The Applicant must submit any further reports as directed by the Planning Secretary.

INCIDENT REPORT REQUIREMENTS

5. If requested by the Planning Secretary, within 30 days of the date on which the incident occurred or as otherwise agreed to by the Planning Secretary, the Applicant must provide the Planning Secretary and any relevant public authorities (as determined by the Planning Secretary) with a detailed report on the incident addressing all requirements below, and such further reports as may be requested.
6. The Incident Report must include:
 - (a) a summary of the incident;
 - (b) outcomes of an incident investigation, including identification of the cause of the incident;
 - (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence; and
 - (d) details of any communication with other stakeholders regarding the incident.